



2025:AHC:190471-DB

HIGH COURT OF JUDICATURE AT ALLAHABAD

WRIT - C No. - 37278 of 2025

Kirti Kushwaha

.....Petitioner(s)

Versus

State Of U.P. And 2 Others

.....Respondent(s)

Counsel for Petitioner(s)	: Lal Ji Maurya, Vinod Kumar
Counsel for Respondent(s)	: C.S.C., Narendra Kumar Tiwari

Court No. - 1

HON'BLE NEERAJ TIWARI, J.
HON'BLE VIVEK KUMAR SINGH, J.

1. Heard learned counsel for the petitioner, learned Standing Counsel for the respondent No. 1 and Sri Narendra Kumar Tiwari, learned counsel for the respondent Nos. 2 and 3.

2. Present writ petition has been filed with the following prayer:

"i) Issue a writ order or direction in the nature of certiorari quashing and setting aside the order impugned dated 28.04.2025 passed by respondent no. 2.

ii) Issue a writ order of direction in the nature of mandamus directing the respondents/competent authority to provide the electricity connection to the petitioner, within stipulated period."

3. The ground of challenge is that now the father of petitioner has executed the gift deed dated 04.03.2021 in favour of petitioner, therefore, she is not liable to pay any remaining dues to the electricity department and it is required on the part of the electricity department to issue fresh connection.

4. Sri Narendra Kumar Tiwari, learned counsel for the respondent Nos. 2 and 3 has opposed the submission of learned counsel for the petitioner and submitted that Clause 4.4f(i) of the Electricity Supply Code, 2005 clearly provides that application can only be processed after clearing dues by the licensee.

5. We have considered the submissions advanced by learned counsel for

the parties and perused the record.

6. Mere execution of gift deed in favour of petitioner does not exclude her from the liability to pay any dues of the house in question including electricity dues.

7. Therefore, in light of aforesaid facts, petitioner lacks merit and is hereby **dismissed**.

8. No order as to costs.

(Vivek Kumar Singh,J.) (Neeraj Tiwari,J.)

October 30, 2025
ADY